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County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-09-17

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Case Number: 25STCP04402 Hearing Date: September 17, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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RYAN KENNETH CHAPELL, et al.,

Petitioner(s),

vs.

COUNTY

OF LOS ANGELES,

Respondent(s).

Case No.:

25STCP04402

Hearing Date:

September 17, 2026

[TENTATIVE]

ORDER RE: MOTION FOR RECONSIDERATION

Petitioner Ryan Kenneth Chapell ("Petitioner") moves for reconsideration of the Court's denial of his petition for leave to present a late claim for damages against respondent County of Los Angeles ("Respondent").

The motion is denied.

I.

Background

1.

Factual Allegations for the Underlying Claim

For the underlying claim, Petitioner alleges as follows:

Adam Iza ("Iza") hired 12 active-duty Los Angeles County Sheriff's Department ("LASD") deputies as his personal security and to harass his personal and business adversaries. (Pet., ¶ 10.) Iza paid these deputies about \$300,000 monthly for their services and for access to LASD resources to obtain search warrants for adversaries, to seize property by those search warrants, and to arrest adversaries. (Pet., ¶¶ 10-11, Ex. A.)

In 2021, Chapell worked as an event planner through his business, Anoma. (Pet., ¶ 7.) In the summer of 2021, Zort, Inc. ("Zort") owned by Iza, requested Chapell's assistance planning and organizing a party for Iza's 21st birthday. (Pet., ¶ 8.)

In August of 2021, Chapell organized and held a party at Iza's residence in Bel Air, for which Iza paid him \$50,000. (Pet., ¶ 19.) After the conclusion of the party, Iza claimed he was unhappy with the party. (Pet., ¶ 21.) Multiple armed deputies, including Eric Chase Saavedra ("Saavedra"), escorted Chapell to Iza at his residence. (Pet., ¶¶ 21-22.) Iza and Saavedra demanded Chapell refund a portion of the \$50,000. (Pet., ¶ 23.) Saavedra demanded Chapell's cell phone, which Chapell refused to turn over. (Pet., ¶ 24.) Saavedra and other deputies displayed their badges, drew their firearms, and pointed them at Chapell. (Pet., ¶ 25.) Iza also pointed an AR-15 "in Chapell's direction". (Pet., ¶ 25.)

Chapell then surrendered his phone and passwords. (Pet., ¶ 26.) Iza used the phone to transfer \$25,000 from Chapell to Iza. (Pet., ¶ 27.) Iza kept Chapell's phone and photographed documents, such as Chapell's license, credit cards, and passports, for later use. (Pet., ¶ 28.) Iza and the deputies then allowed Chapell to leave. (Pet., ¶ 29.)

Over the next several days, Iza transferred tens of thousands of dollars from Chapell to himself. (Pet., ¶ 30.)

At Iza's direction, Saavedra and other deputies planned to frame and arrest Chapell for drug possession. (Pet., ¶ 31.) Saavedra and other deputies contacted Chapell's girlfriend, bribing or threatening her to secure her participation. (Pet., ¶ 32.)

On or around September 27, 2021, Chapell and his girlfriend were in a vehicle in Lakewood when Saavedra and other deputies, at Iza's direction, performed a traffic stop of Chapell's vehicle. (Pet., ¶¶ 33-34.) The deputies informed Chapell he was being arrested on a bench warrant. (Pet., ¶ 35.) The deputies searched the vehicle and found two bags of narcotics which Chapell was carrying at Iza's direction. (Pet., ¶ 37.) The deputies then arrested Chapell for drug possession, but did not arrest his girlfriend. (Pet., ¶ 38.) Iza arrived at the scene and contacted the deputies. (Pet., ¶ 39.)

LASD held Chapell for three days, charging him with transportation of controlled substances. (Pet., ¶ 40.) On January 9, 2022, the charges against Chapell were dropped for lack of sufficient evidence. (Pet., ¶ 40.)

Subsequently, Iza directed Saavedra and other deputies to illegally search Chapell's house and arrest Chapell. (Pet., ¶ 41.) Saavedra and other deputies filed a sealed search warrant application accusing Chapell of "selling narcotics and storing large quantities of fentanyl and cocaine [in his] residence". (Pet., ¶ 42.) In the accompanying affidavit, the deputies "did not disclose their existing relationship with [Iza] or payments received from [Iza]," or any illegal conduct at his direction. (Pet., ¶ 43.) Chapell had no way of knowing what was in the sealed search warrant and affidavit. (Pet., ¶ 44.)

On October 12, 2021, LASD executed the search warrant at Chapell's apartment. (Pet., ¶¶ 14, 45.)

Chapell was handcuffed and placed in an unmarked LASD patrol car for the duration of the search. (Pet., ¶ 46.) The deputies never provided or displayed the search warrant. (Pet., ¶ 47.) The deputies did not locate any narcotics, but did destroy Chapell's apartment. (Pet., ¶ 48.)

Out of fear for his life and safety, Chapell relocated out of the Los Angeles area. (Pet., ¶ 51.)

The Federal Bureau of Investigation ("FBI") began investigating Iza and his conspirators for extortion, payments in exchange for commission of unlawful acts by law enforcement officers in their official capacities, unlawful searches and arrests to intimidate victims, and evasion of tax assessments related to receipt of money obtained through fraudulent means. (Pet., ¶ 14.)

Three deputies have since pled guilty. (Pet., ¶ 15.) Multiple deputies have been charged with violating Chapell's constitutional rights, and other deputies are cooperating with the FBI to charge and prosecute other deputies. (Pet., ¶¶ 16-17.)

On September 23, 2024, a felony criminal complaint and supporting affidavit were filed against Iza for conspiracy and tax evasion in connection with these actions. (Pet., ¶¶ 12, 52.) The affidavit revealed to Chapell the extent of Iza's activities and involvement in the issuance and execution of the search warrant against him. (Pet., ¶ 55.)

On January 30, 2025, Iza waived indictment and pled guilty to the criminal charges. (Pet., ¶ 13.)

2.

Facts Relating to Filing the Claim

On Monday, March 24, 2025, Chapell's counsel filled and filed a Claim for Damages form for Chapell's claim for the illegal search of his home, mistakenly using a City of Los Angeles ("City") form rather than a Respondent form. (Steering Decl., ¶¶ 56-59.)

Then and thereafter, Petitioner's counsel suffered a severe

flare-up of ulcerative colitis and was in constant severe pain. (Steering Decl., ¶¶ 60-61, 71.) Petitioner's counsel was on strong pain medication and worked a reduced schedule. (Steering Decl., ¶¶ 61-66, 73, Ex. E.) The City Claim for Damages form does not obviously display "City of Los Angeles". (Steering Decl., ¶ 70.) The information Petitioner entered on the form made clear the claims were directed to Respondent. (Steering Decl., ¶ 71.)

On or about April 4, 2025, Petitioner's counsel received a letter from the City acknowledging receipt. (Steering Decl., ¶ 65, Ex. F.)

On April 18, 2025, when counsel saw the claim was filed with the City, counsel filed an application to file a late claim with Respondent. (Steering Decl., ¶ 67, Exs. B, G.)

On or about May 14, 2025, Respondent denied the late claim application, and Petitioner received a letter from Respondent stating its decision on May 23, 2025. (Steering Decl., ¶ 68, Ex. H.)

3.

Procedural History

On November 14, 2025, Petitioner filed his petition for relief from the claim filing requirements of Government Code section 945.4, along with a supporting memorandum.

On February 17, 2026, the court overruled Respondent's demurrer to the petition. On February 27, 2026, Respondent filed its answer to the petition.

On April 3, 2026, Respondent filed its opposition to the petition for relief from the claim filing requirements. On May 26, 2026, Petitioner filed his reply.

On June 18, 2026, the Court heard and denied the petition.

On June 29, 2026, Petitioner filed the instant motion for reconsideration of denial of the petition, noticed for August 27, 2026.

On July 6, 2026, Petitioner filed a motion for new trial on

the petition, also noticed for August 27, 2026. On July 24, 2026, the Court continued the instant motion for reconsideration to September 17, 2026.

On July 31, 2026, Petitioner again filed his motion for new trial, this time noticed for September 24, 2026 at the Clerk's direction. On August 10, 2026, the Court, in light of the statutory time limit to rule on new trial motions, reset the hearing on the motion for new trial to August 27, 2026.

On August 27, 2026, the Court denied Petitioner's motion for new trial.

On September 3, 2026, Respondent filed its opposition to the instant motion for reconsideration. Petitioner's reply was required to be filed at least five days before the date of the hearing, or September 10, 2026. (Code of Civil Procedure ["CCP"]^[1] § 1005.) To date, no reply has been filed.

II.

Evidentiary Objections

Respondent objects to portions of the Steering Declaration and portions of the Hands Declaration.

For the Steering Declaration, the objections to paragraphs 6, 9, 10, 11, 18, 19, 20, 21, 24, 26, and 30 are sustained for secondary evidence rule/testimony as to the contents of written documents. The objections to paragraphs 5, 22, 31, 32, and 33 are sustained as legal conclusions. The remaining objections are overruled.

For the Hands Declaration, all objections are overruled.

The evidence is admitted. To the extent the admitted evidence contains legal conclusions, the Court will disregard them. The Court will afford the admitted evidence its proper weight.

III.

Discussion

A motion for reconsideration constitutes the exclusive means

for a party seeking modification, amendment or revocation of an order. (Morite of Calif. v. Superior Court (1993) 19 Cal.App.4th 485, 490.) To be entitled to reconsideration, a party must show (1) new or different facts, circumstances, or law, and (2) a satisfactory explanation for failing to produce such evidence earlier. (Kalivas v. Barry Controls Corp. (1996) 49 Cal.App.4th 1152, 1160-61.) The requirement of satisfactory explanation for failing to provide the evidence earlier can only be described as a strict requirement of diligence. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) A motion for reconsideration cannot be granted on the ground that the court misapplied the law in its initial ruling. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.)

A renewed motion is a motion or application for an order that was refused in whole or in part, or granted conditionally on terms. §1008(b). A renewed motion is not governed by the strict ten-day timeline but is otherwise governed by the same requirements of new or different facts, circumstances or law, and due diligence.

Petitioner's motion is not persuasive. His only explanation for why he did not present the facts about his associate's handling of the claim submission is that the parties did not brief that question. First, this is an insufficient showing, because Petitioner had the burden to show excusable neglect to support his petition, so his failure to sufficiently show excusable neglect at hearing cannot serve as the necessary diligence showing. (Shaddox v. Melcher (1969) 270 Cal.App.2d 598, 600-601.) Second, even if accepted, the new facts would not entitle Petitioner to relief as they go only to a legal theory Petitioner disclaimed at hearing.

Petitioner presents no explanation for why he did not present further facts about the connection between his medical condition and his error. Additionally, Petitioner does not explain in his briefing how the new facts demonstrate that connection, and instead impermissibly exports that argument to the 14-page Steering Declaration.

Petitioner likewise presents no explanation for why he did not present the "new" law on excusable neglect by lawyers in his briefing or at hearing. Further, even if accepted, this new law would not entitle Petitioner to relief, because it only shows that attorney conduct, even legal work, may be excusable neglect. As explained in the Court's June 18, 2026 and August 27, 2026 rulings, this Court did not hold otherwise.

Essentially, Petitioner seeks an opportunity to correct the defects the Court observed in Petitioner's original showing without any justification for why he could not originally make a sufficient showing. Petitioner must establish his diligence; failure to do so is fatal. (Garcia v. Hejmadi, supra, 58 Cal.App.4th 674, 685-90.)

IV.

Conclusion

The motion is DENIED.

Date: September 17, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter

off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

All further statutory references are to the CCP unless otherwise stated.